

§ 422. Persons who may originate proceedings. (a) A husband, wife, child, or relative in need of public assistance or care may originate a proceeding under this article to compel a person chargeable with the support to support the petitioner as required by law. A social services official may originate a proceeding under this article if so authorized by section one hundred and two of the social services law. The commissioner of mental health may originate a proceeding under this article when authorized by article forty-three of the mental hygiene law. A parent or guardian, of a child, or other person in loco parentis, or a representative of an incorporated charitable or philanthropic society having a legitimate interest in the petitioner, or, when the petitioner is unable because of his physical or mental condition to file a petition, a guardian ad litem, or a committee, conservator, next friend or other person appointed by the court, may file a petition in behalf of a dependent relative.

(b) Any party to a decree of divorce, separation, or annulment may originate a proceeding to enforce or modify a decree of the supreme court or a court of competent jurisdiction, not of the state of New York, as is provided in part six of this article.